

Terms and Conditions for Renewable Energy Device Registration

Effective Date: 2025-09-18

These Terms and Conditions (the "T&Cs") govern your access to and use of the RED Registration and REC Issuance Platform (the "Platform") and the contractual relationship between the following parties:

- Party A: Silver Carbon P/L, the party responsible for registering Renewable Energy Devices/facilities (REDs) and facilitating verification and issuance of Renewable Energy Certificates (RECs) on the REC Registry, under Party A's account.
- Party B: FBC bank limited, the party providing REDs, supplying documentation, maintaining operational REDs, and cooperating with Party A in the issuance and transfer of RECs.

Collectively, Party A and Party B shall be referred to as the "Parties" and individually as a "Party".

By accessing or using the Platform, you confirm that you have read, understood, and agree to be bound by these T&Cs.

1. Definitions

- "RED" means a Renewable Energy Device or facility that generates renewable electricity and qualifies for RECs.
- "REC" means Renewable Energy Certificate representing the environmental attributes of electricity generated by a RED.
- "Registry" means the REC registries or issuance bodies to which REDs are registered and RECs are issued.
- "Issuance" means the process by which RECs are created and recorded on the Registry.
- "Deal Notes / Sales Agreement" means the agreement documenting the sale of RECs between a buyer and seller.
- "Platform" means the online system operated by the Platform Operator for registration, issuance, trading, and transfers of RECs.
- "Platform Operator" means the operator/administrator of the Platform.
- "Fees" means the charges payable in connection with registration, issuance, verification, transfer, and platform use.
- "Party A Account" means the account under Party A used to interact with the Registry and Platform.
- "Parties' Confidential Information" means non-public information exchanged under these T&Cs.

2. Scope of Agreement

These T&Cs govern: (a) the registration of REDs by Party A, (b) the issuance/verification of RECs on the Registry, (c) the transfer of RECs to buyers' accounts in accordance with Deal Notes or Sales Agreements, and (d) the execution of REC trading and related platform activities.

These T&Cs operate in conjunction with Platform policies. In case of inconsistency, the order of precedence is: applicable law, these T&Cs, Platform policies, and any applicable Deal Notes/Sales Agreements.

3. Roles and Duties

3.1 Party A – Registration and Issuance Facilitator

- Verification Facilitation: Undertake tasks necessary to facilitate the issuance and trading of RECs.
- REC Issuance and Registry Connectivity: Ensure timely issuance of RECs and maintain connectivity to the Registry.
- Transfer of RECs: Transfer RECs to buyers in accordance with applicable Deal Notes or Sales Agreements.
- Payment of Fees: Make payments for registration, verification, and issuance fees.
- Platform Execution: Execute platform-related activities to support REC issuance, transfer, and trading.

3.2 Party B – RED Provider

- Provision of Documentation: Provide all relevant documents to Party A.
- Operational RED Availability: Ensure REDs are available and operational.
- Notification of RED Non-Performance: Immediately notify Party A of any RED non-performance.
- Cooperation and Data Provision: Provide timely cooperation and data for verification and issuance.

- Warranty of Ownership and Authority: Ensure right and authority to bring REDs into the REC program.

4. Registration, Issuance, and Transfer Mechanics

Registration, issuance, and transfer shall be conducted in accordance with Registry rules and the I-REC framework. Party A shall undertake reasonable efforts to verify documentation; however, Party A shall not be liable for inaccuracies in information provided by Party B, except for gross negligence or wilful misconduct.

5. Fees and Payments

Fees for registration, verification, and issuance shall be borne by the platform operator.

6. Compliance and Legal

Both Parties shall comply with applicable laws and regulatory requirements related to REDs, RECs, registration, issuance, transfer, and trading, including anti-fraud, anti-money laundering, counter-terrorist financing, sanctions, data protection, and reporting requirements.

7. Representations and Warranties

Each Party represents it has the authority to enter into and perform under these T&Cs, and that performance will comply with all applicable laws and contractual obligations.

8. Intellectual Property

Each Party retains its own intellectual property rights. Any licenses granted are non-exclusive, non-transferable, and limited to RED registration, REC issuance, and REC trading purposes.

9. Data Protection and Privacy

Each Party shall comply with applicable data protection laws. Personal data shall be handled in accordance with the Platform's privacy policy and data processing agreements.

10. Limitation of Liability

Neither Party shall be liable for indirect or consequential damages. Direct damages limited to amounts paid in preceding twelve months, except for gross negligence, willful misconduct, or breach of data protection obligations.

11. Force Majeure

Neither Party liable for failure or delay due to events beyond reasonable control, provided notice is given and mitigation steps are taken.

12. Term and Termination

These T&Cs remain in effect for five years subject to renewal. Either Party may terminate on three months written notice for cause. Termination does not affect accrued rights or ongoing regulatory obligations.

13. Data Retention and Recordkeeping

Parties shall maintain records required by applicable law and regulatory authorities.

14. Exclusivity, Sale of RECs, and Commission

a) Exclusivity

Party B grants Party A exclusive right as sole intermediary for sale, marketing, and facilitation of RECs generated from REDs registered under this Agreement.

b) Commission and Payment Mechanics

Party B entitled to commission equal to 30% of net revenue from REC sales. Payment within 5 calendar days following receipt of funds from purchaser.

c) Confidentiality and Data

Each Party shall treat all information exchanged as confidential.

d) Termination and Survival

Exclusivity and commission provisions survive termination to extent necessary for outstanding transactions.

15. Dispute Resolution

Disputes resolved by commercial arbitration in Harare, Zimbabwe, under CAC rules. Arbitration award final and binding.

16. Governing Law and Jurisdiction

These T&Cs governed by laws of Zimbabwe. Courts of Zimbabwe have jurisdiction for non-arbitrable matters.

17. Insurance

Parties may maintain appropriate insurance coverage for potential losses.

18. Amendments and Updates

Platform Operator may amend T&Cs from time to time. Material amendments communicated in advance.

19. Miscellaneous

Parties are independent contractors. Assignment requires prior written consent. Severability and waiver provisions apply.

20. Notices

Notices shall be in writing and delivered to addresses specified by each Party.

21. Counterparts and Electronic Signatures

T&Cs may be executed in counterparts and by electronic signature.

THUS DONE AND EXECUTED ON THIS 18 September 2025

SILVER CARBON PRIVATE LIMITED ("Party A")

A handwritten signature in black ink, appearing to read 'Owen Mutero', with a stylized, cursive script.

NAME: Owen Mutero

POSITION: Managing Director

FBC bank limited ("Party B")

A handwritten signature in black ink, appearing to read 'Simbarashe Mutombe', with a stylized, cursive script.

NAME: Simbarashe Mutombe

POSITION: Director